

		Plaintiffs have not received any responses in compliance with the 4-29-26 Order. The moving party must not only show that there was violation of the court's order, but that such violation was willful. (Doppes, supra, 174 Cal.App.4th at 992.) Plaintiffs have not shown that the violation of the Court's Order was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate prior to imposition of terminating sanctions. Accordingly, Plaintiffs' request for terminating sanctions is DENIED. As to issue and evidentiary sanctions, pursuant to California Rules of Court, Rule 3.1345(a)(7), a separate statement is required for a motion for issue or evidentiary sanctions. Plaintiffs have not filed a separate statement in support of their request for issue and evidentiary sanctions and therefore failed to comply with Rule 3.1345(a)(7). Accordingly, Plaintiffs' request for issue and evidentiary sanctions is DENIED. Defendant is ORDERED to comply with the Court's 4-29-26 Order within 20-days' notice of this ruling. The Court warns Defendant that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Plaintiffs to give notice.
12	Ramirez vs. Woodlake Village Community Association 2025-01456495 Motion for Summary Judgment and or Adjudication Review Hearings	Defendant Farmers Insurance Exchange motion for summary judgment, or in the alternative for summary adjudication, in its favor and against Plaintiff Adriana Ramirez, on all causes of action alleged in Plaintiff's First Amended Complaint is CONTINUED to November 30, 2026, at 1:45 p.m. Plaintiff opposes the Motion but, in the alternative, seeks a continuance to obtain additional discovery. Code of Civil Procedure section 437c, subdivision (h) provides: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due."

		<i>Braganza v. Albertson's LLC</i> (2021) 67 Cal.App.5th 144, 152–53, states: "Given the high stakes involved in motions for summary judgment and summary adjudication, continuances under section 437c, subdivision (h), are "virtually mandated ` "upon a good faith showing by affidavit that a continuance is needed to obtain facts essential to justify opposition to the motion." ' " (Bahl, supra, 89 Cal.App.4th at pp. 395, 398-399, 107 Cal.Rptr.2d 270; Johnson v. Alameda County Medical Center (2012) 205 Cal.App.4th 521, 532, 140 Cal.Rptr.3d 281 (Johnson) [" `When a party makes a good faith showing by affidavit demonstrating that a continuance is necessary to obtain essential facts to oppose a motion for summary judgment, the trial court must grant the continuance request.' "].) Plaintiff has submitted the declaration of her attorney, Dominique N. Westmoreland, in support of her request for a continuance. Plaintiff asks that the court continue the hearing to allow Plaintiff to depose Michelle Moore. Plaintiff states that during his deposition, Farmers' adjuster, Jesus Medina, testified that Moore had final authority over the additional living expense period and that he would submit the period to her for approval. (Westmoreland Decl., ¶ 12.) Plaintiff requires Moore's deposition to determine the facts she considered, the reason she rejected further benefits, her authority within Farmers, and whether she authorized or ratified the cutoff despite knowledge that reconstruction remained incomplete. (Westmoreland Decl., ¶ 14.) Plaintiff also requires a person-most-qualified ("PMQ") deposition concerning Farmers' additional living expense policies, repair-period determinations, supervisory approval requirements, training, and corporate ratification. (Westmoreland Decl., ¶ 15.) Plaintiff has sufficiently shown that the facts to be obtained through further discovery and depositions of Moore and Farmer's PMQ are essential to opposing the Motion and there is reason to believe such facts may exist. Accordingly, the hearing on the Motion is CONTINUED. Moving party to give notice.